

26VECV00127 26VECV00127

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-05

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Case Number: 26VECV00127 Hearing Date: August 5, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

9000 ARLINGTON AVE LLC, a California limited liability company,

Plaintiff,

vs.

RICHARD IRWIN KANE, TRUSTEE OF THE RICHARD IRWIN KANE 2006 TRUST; BRONZETREE TERRACES, LLC; RTI PROPERTIES, INC., a California corporation; REDIGER INVESTMENT MORTGAGE FUND, a California limited partnership; PEAK FORECLOSURE SERVICES, INC., a California corporation; LIDA KOHANSAMEH, an individual; ALL PERSONS UNKNOWN, CLAIMING ANY LEGAL OR EQUITABLE RIGHT, TITLE, ESTATE, LIEN OR INTEREST IN THE PROPERTY DESCRIBED IN THE COMPLAINT ADVERSE TO PLAINTIFF'S TITLE, OR ANY CLOUD UPON PLAINTIFF'S TITLE THERETO; and DOES 1-50, inclusive,

Defendants.

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CASE NO: 26VECV00127

[TENTATIVE] RULING RE: OSC RE: PRELIMINARY INJUNCTION

Dept. U

8:30 a.m.

August 5, 2026

BACKGROUND

This case is a quiet title action arising from an alleged wrongful foreclosure sale.

On January 8, 2026, Plaintiff 9000 Arlington Ave LLC filed its complaint against Defendants Richard Irwin Kane ("Kane"), Trustee of The Richard Irwin Kane 2006 Trust; Bronzetrete Terraces, LLC ("Bronzetrete"); RTI Properties, Inc. ("RTI"); Rediger Investment Mortgage Fund ("Rediger"); Peak Foreclosure Services, Inc. ("Peak"); and Lida Kohansameh ("Kohansameh"), alleging: (1) wrongful foreclosure; (2) cancellation of instruments; (3) promissory estoppel; and (4) quiet title.

On January 13, 2026, Plaintiff filed a notice of recording lis pendens against real property that is the subject of this action.

On January 21, 2026, Kohansameh filed her answer to the complaint.

On March 3, 2026, Plaintiff dismissed Rediger as a defendant from this case.

On June 1, 2026, Kohansameh filed her application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction.

Also on June 1, 2026, Plaintiff filed its opposition brief.

On June 2, 2026, Judge Anthony Mohr granted in part Kohansameh's application for a TRO and entered an order that Plaintiff be, among other things, "immediately restrained and enjoined from performing, directing, permitting, or causing any construction, alteration, or work of any kind at 23476 Palm Drive, Calabasas, California 91302, pending further order." (Order dated June 2, 2026, ¶ 1.) Judge Mohr declined to issue part of Kohansameh's proposed order that would require Plaintiff to immediately vacate the property.

On June 12, 2026, Judge Mohr set a hearing on an OSC re: preliminary injunction for July 6, 2026.

On June 17, 2026, Kohansameh filed an attorney declaration in support of her request for an order continuing the hearing on the OSC re: preliminary injunction.

On June 23, 2026, Judge Yolanda Orozco sustained, with leave to amend, Kane's demurrer to the complaint and granted, with leave to amend, Kane's motion to strike portions of the complaint.

On July 6, 2026, the Court entered the parties' joint stipulation to continue the hearing on the OSC re: preliminary injunction to August 5, 2026.

On July 14, 2026, Plaintiff filed its first amended complaint against Kane, Bronzetrete, RTI, Peak, and Kohansameh, alleging: (1) wrongful foreclosure; (2) cancellation of instruments; (3) promissory estoppel; and (4) quiet title.

On July 17, 2026, Kohansameh posted a \$10,000.00 bond as required under Judge Mohr's TRO.

On July 27, 2026, Kohansameh filed another supplemental attorney declaration in support of her request for a preliminary injunction.

On July 31, 2026, Plaintiff filed objections to evidence.

As of 10:00 A.M. on August 4, 2026, nothing further had been filed in this matter by any party.

RULING

The application for preliminary injunction is denied. The TRO is dissolved.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo and prevent irreparable harm pending a trial on the merits. *White v. Davis* (2003) 30 Cal.4th 528, 554. To obtain a preliminary injunction, a moving party must show: (1) she would likely suffer an irreparable injury for which damages would be an inadequate remedy if the injunction were denied; and (2) there exists a reasonable probability that she will prevail on the merits of her claims. *Huong Que, Inc. v. Luu* (2007) 150 Cal.App.4th 400, 408.

RULINGS ON OBJECTIONS TO EVIDENCE

Plaintiff objects to evidence submitted by Kohansameh in support of her request for a preliminary injunction. Plaintiff's objections are overruled, except that the Court has considered Mr. Hofman's lack of an expert witness designation and lack of personal knowledge of facts stated in his most recent supplemental attorney declaration. The Court's analysis of Mr. Hofman's most recent supplemental attorney declaration is included herein.

DISCUSSION

After Judge Mohr issued a TRO, Kohansameh filed no supplemental brief to clarify her position as to why a preliminary injunction should issue. Rather, Kohansameh's supplemental attorney declarations appear to indicate that the preliminary injunction issue is moot.

On June 17, 2026, counsel for Kohansameh filed a declaration stating that the outcome of a separately pending unlawful detainer action involving the same property and the same parties "could alter the necessity of a preliminary injunction" if she obtained a favorable result on a motion for summary judgment set for hearing on July 8, 2026. (Hofman decl. dated June 17, 2026, ¶ 3.)

On July 27, 2026, counsel for Kohansameh filed a second declaration stating that he had personally inspected the premises and that, to his eye, "[i]t looked as if someone had abandoned the premises." (Hofman decl. dated July 27, 2026, ¶ 3.) Counsel continues, "The moving party herein has already prevailed on summary judgment in the unlawful detainer action and is just awaiting the final conclusion of the lock out." (Hofman decl. dated July 27, 2026, ¶ 6.) Counsel requests, without legal reasoning, that Plaintiff be required to post a \$10 million bond unless it has "formally moved out by August 4, 2026." (Hofman decl. dated July 27, 2026, ¶ 8.)

Counsel for Kohansameh goes on to state that in his non-expert opinion, the lack of maintenance at the premises presents health and safety concerns and a fire risk. Counsel does not state the specific bases for his non-expert opinion that the condition of the premises presents a fire risk. In short, counsel is unqualified to provide credible opinion as to such risks, and the Court disregards his testimony in these regards. Even if counsel were qualified to provide such an expert opinion, Kohansameh fails to explain how a continuing injunction is necessary to abate such risks if Plaintiff has already moved out and Kohansameh already has access to the premises.

In sum, Kohansameh concedes that she has already prevailed in the separately pending unlawful detainer action and that Plaintiff has already vacated the premises. Thus, there is no risk that Plaintiff's continued possession of the premises will result in irreparable harm. (Again, the Court disregards counsel's non-expert testimony that there is an immediate fire risk.) By all appearances, the application for preliminary injunction is moot, as is any need to continue the TRO.

The application for preliminary injunction is denied. The TRO is dissolved.

CONCLUSION

Defendant Lida Kohansameh's application for a preliminary injunction is DENIED.

The Temporary Restraining Order issued by Judge Anthony Mohr on June 2, 2026, is DISSOLVED.

The Clerk is ORDERED to give notice.

DATED: August 5, 2026

Lee S. Arian

Judge of the Superior Court